

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mimi Western	Team: Squad #12	CCRB Case #: 202405077	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/21/2024 9:39 PM	Location of Incident: Zimmerman Playground in the Bronx	18 Mo. SOL 11/21/2025	Precinct: 49		
Date/Time CV Reported Wed, 05/22/2024 3:24 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/22/2024 3:24 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Rodolfo Viveros	31721	976899	TD 12
2. PO Marianny Montanoarias	15919	976780	049 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Reginald Odametey	27249	976799	049 PCT
2. PO Jason Mcwillis	17537	978061	049 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Rodolfo Viveros	Abuse: Police Officer Rodolfo Viveros improperly used his body-worn camera.	A . Substantiated
B . PO Marianny Montanoarias	Abuse: Police Officer Marianny Montanoarias improperly used her body-worn camera.	B . Substantiated
C . PO Rodolfo Viveros	Abuse: Police Officer Rodolfo Viveros stopped § 87(2)(b)	C . Within NYPD Guidelines
D . PO Marianny Montanoarias	Abuse: Police Officer Marianny Montanoarias stopped § 87(2)(b)	D . Within NYPD Guidelines
E . PO Rodolfo Viveros	Abuse: Police Officer Rodolfo Viveros threatened to detain § 87(2)(b)	E . Within NYPD Guidelines
F . PO Marianny Montanoarias	Abuse: Police Officer Marianny Montanoarias threatened to detain § 87(2)(b)	F . Within NYPD Guidelines
G . PO Rodolfo Viveros	Abuse: Police Officer Rodolfo Viveros interfered with an individual's use of a recording device.	G . Within NYPD Guidelines
H . PO Rodolfo Viveros	Discourtesy: Police Officer Rodolfo Viveros acted discourteously toward an individual.	H . Substantiated
I . PO Rodolfo Viveros	Abuse: Police Officer Rodolfo Viveros interfered with individuals' use of recording devices.	I . Within NYPD Guidelines
J . PO Rodolfo Viveros	Force: Police Officer Rodolfo Viveros used physical force against an individual.	J . Unfounded

Case Summary

§ 87(2)(b) filed this complaint on behalf of her 17-year-old daughter, § 87(2)(b) with the CCRB via telephone on May 22, 2024.

On May 21, 2024, at approximately 9:39 PM, PO Marianny Montanoarias of the 49th Precinct and PO Rodolfo Viveros of Transit District 12 (at the time assigned to the 49th Precinct) activated their BWCs late (**Allegations A and B: Abuse of Authority, Substantiated**) when they stopped § 87(2)(b) outside of Zimmerman Playground in the Bronx (**Allegations C and D: Abuse of Authority, Within NYPD Guidelines**). PO Viveros told § 87(2)(b) that if she did not provide identification, she would, “End up in cuffs” (**Allegation E: Abuse of Authority, Within NYPD Guidelines**), and PO Montanoarias told § 87(2)(b) that she could be handcuffed and taken to a stationhouse (**Allegation F: Abuse of Authority, Within NYPD Guidelines**). § 87(2)(b) unidentified friends approached § 87(2)(b) and the officers. PO Viveros knocked a phone from the hand of one of § 87(2)(b) friends while they were recording him (**Allegation G: Abuse of Authority, Within NYPD Guidelines; Allegation H: Discourtesy, Substantiated**). PO Viveros also pushed away the phones and hands of two of § 87(2)(b) other friends as they recorded PO Viveros (**Allegation I: Abuse of Authority, Within NYPD Guidelines**). PO Viveros allegedly pushed one of § 87(2)(b) friends (**Allegation J: Force, Unfounded**). § 87(2)(b) was on a FaceTime call with her mother, § 87(2)(b) during a portion of this incident. Neither § 87(2)(b) nor her friends received a summons or were arrested during this incident.

The investigation obtained BWC videos recorded by PO Viveros and PO Montanoarias, as well as by PO Reginald Odametey and PO Jason McWillis of the 49th Precinct (Board Review 01 to 03), summarized in IA #29 (Board Review 04).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Rodolfo Viveros improperly used his body-worn camera.

Allegation (B) Abuse of Authority: Police Officer Marianny Montanoarias improperly used her body-worn camera.

Allegation (C) Abuse of Authority: Police Officer Rodolfo Viveros stopped § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Marianny Montanoarias stopped § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Rodolfo Viveros threatened to detain § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Marianny Montanoarias threatened to detain § 87(2)(b)

§ 87(2)(b) (Board Review 05) stated that she was riding an electric scooter home and rode it on a sidewalk. PO Viveros and PO Montanoarias walked in front of § 87(2)(b) as she rode on the sidewalk. PO Viveros and PO Montanoarias told § 87(2)(b) to stop and that she could not ride on the sidewalk. PO Viveros asked § 87(2)(b) for ID, and § 87(2)(b) asked what the problem was. PO Viveros then activated his BWC and told § 87(2)(b) that she was not allowed to ride on the sidewalk. PO Viveros also asked her for her age and her name. § 87(2)(b) did not provide her name or ID. PO Viveros told § 87(2)(b) that she was not cooperating and that if she did not provide her information, he could handcuff her and take her “downtown.”

In PO Viveros’ BWC video (Board Review 02), at 0 minutes 0 seconds, § 87(2)(b) rides an electric bicycle along a sidewalk toward PO Viveros and PO Montanoarias. At 0 minutes 5 seconds,

PO Viveros extends his hand out in front of him while § 87(2)(b) comes to a stop. At 0 minutes 6 seconds, PO Viveros appears to gesture, making the shape of a card with his right hand. At 0 minutes 15 seconds, § 87(2)(b) appears to continue speaking to the officers, but there is no audio capturing this portion of the incident. At 1 minute 0 seconds, audio begins, indicating that PO Viveros activates his BWC. PO Montanoarias tells § 87(2)(b) that they are asking for her ID. PO Viveros also asks for § 87(2)(b) ID. § 87(2)(b) does not provide ID. She laughs and asks if the officers are joking. PO Viveros says that he is not joking. § 87(2)(b) says that she is going to call her legal guardian because she does not consent to speak with the officers. At 1 minute 37 seconds, PO Viveros says, “You have either two choices. You end up in cuffs, or you give me your ID.” At 1 minute 41 seconds, one of § 87(2)(b) friends asks why § 87(2)(b) would end up in handcuffs. PO Viveros replies, “Because she’s failure [sic] to identify herself.” § 87(2)(b) then begins to speak with § 87(2)(b) via FaceTime. § 87(2)(b) says that she was about to park her bicycle and that the officers are asking her for ID. § 87(2)(b) says, “I’m getting stopped. I don’t have to consent. I don’t have to give them anything, and I know that.” At 2 minutes 13 seconds, PO Viveros tells § 87(2)(b) that she has to provide her ID to him, and PO Montanoarias tells § 87(2)(b) “If you refuse, we can cuff you down and take you to the precinct until you give us ID.”

PO Montanoarias’ BWC video (Board Review 03) is similar. Beginning at 0 minutes 0 seconds, the video captures § 87(2)(b) straddling an electric bicycle on a sidewalk in front of PO Viveros and PO Montanoarias. § 87(2)(b) appears to be speaking to the officers but there is no audio. At 1 minute 0 seconds, audio begins as PO Montanoarias activates her BWC. § 87(2)(b) continues speaking to the officers, and PO Montanoarias tells § 87(2)(b) that they need her ID or else the officers can take her to a stationhouse.

PO Viveros provided a statement on July 23, 2024 (Board Review 06). He stated that he observed § 87(2)(b) riding an electric scooter on the sidewalk. § 87(2)(b) then stopped in front of PO Viveros and PO Montanoarias. PO Viveros told § 87(2)(b) twice that she could not ride on the sidewalk and that this was a violation. PO Viveros then activated his BWC. PO Viveros told § 87(2)(b) that she had to either give him her ID, because she had committed a violation by riding on the sidewalk, or else he would have to detain her and bring her to the stationhouse to identify her there. There was no reason PO Viveros told § 87(2)(b) that he would detain her other than a need to identify her. PO Viveros did not activate his BWC at the beginning of his interaction with § 87(2)(b) because he initially intended only to tell her that she could not ride on the sidewalk. PO Viveros was prompted to activate his BWC when § 87(2)(b) failed to comply with what he was saying. PO Viveros believed he was not required to activate his BWC earlier during this incident because, at that point, he only intended to warn § 87(2)(b) not to ride on the sidewalk, and then to let her leave.

PO Montanoarias also provided a statement on July 23, 2024 (Board Review 07). She stated that she and PO Viveros stopped § 87(2)(b) told her that she could not ride on the sidewalk, and told her to dismount the scooter. § 87(2)(b) told the officers that she was allowed to be there and that she was a minor. She refused to dismount. Because § 87(2)(b) did not comply, PO Montanoarias and PO Viveros then asked § 87(2)(b) to identify herself. PO Viveros asked § 87(2)(b) for her ID first, and then PO Montanoarias also asked § 87(2)(b) for her ID. § 87(2)(b) said that she did not consent to providing her ID, that she was not going to consent to any of this interaction, and that she was going to call her mother. After § 87(2)(b) said that she was a minor and that she did not consent, PO Montanoarias and PO Viveros activated their BWCs. Nothing else happened before PO Montanoarias activated her BWC. PO Montanoarias did not activate her BWC earlier during this incident because she did not think the interaction with § 87(2)(b) would require anything beyond explaining to her that she could not ride on the sidewalk. PO Montanoarias was required to activate her BWC upon telling § 87(2)(b) why she had been stopped. PO Montanoarias and PO Viveros

asked § 87(2)(b) for her identification again, and explained that if she failed to identify herself, then they could take her to their stationhouse to identify her. PO Montanoarias stated that ultimately, she exercised discretion not to issue § 87(2)(b) a summons.

Per *People v. De Bour*, 40 N.Y.2d 210 (Board Review 08), an officer may stop an individual when they reasonably suspect that such person is committing, has committed, or is about to commit a crime.

NYS Vehicle and Traffic Law § 1282 (Board Review 09) states that no person shall operate an electric scooter on a sidewalk. Similarly, NYC Administrative Code 19-176 (Board Review 18) states that no person shall ride a bicycle on a sidewalk unless permitted by an official sign.

NYPD Patrol Guide Procedure 212-123 (Board Review 10) states that members of service must activate their BWCs prior to engaging in any police action, which includes calls for service, addressing quality of life conditions, handling pick-up assignments, and any self-initiated investigative or enforcement actions, such as witness canvasses, vehicle stops, and investigative encounters. They are also to record any interactions that escalate to become adversarial or may hold evidentiary value. Officers should activate their BWC as soon as it is feasible and safe to do so after it is safe to do so after taking necessary action to preserve human health and safety, when an unanticipated or exigent occurrence takes place.

The NYPD's Body-Worn Camera Impact and Use Policy (April 11, 2021) (Board Review 11) explains that for Axon cameras such as those in use here, once powered on, BWCs continuously record video, re-writing over captured video in 60 second intervals. When an officer activates the record switch, the preceding 60 seconds of video recording is automatically saved. That 60 seconds of recorded video will not contain audio. Once the record switch is activated, the BWC records all audio and video until the record-switch is deactivated.

NYPD Patrol Guide Procedure 209-09 (Board Review 12) states that when an individual commits a traffic violation and an officer has doubt concerning the violator's identity, an officer is to remove the violator to the command. Likewise, NYPD Patrol Guide Procedure 209-03 (Board Review 19) states that when an individual violates certain section of the New York City Administrative Code, officers must ask the violator to show proof of identity and residence and should remove the violator to an NYPD command if they do not possess valid identification.

PO Viveros' and PO Montanoarias' BWC videos both capture the officers interacting with § 87(2) b) for approximately one minute prior to activating their BWCs. § 87(2)(g)

it is recommended that **Allegations A and B** be closed as **Substantiated**.

PO Viveros' BWC video clearly captures § 87(2)(b) § 87(2)(g) riding what was either an electric scooter or bicycle on a sidewalk.

§ 87(2)(g) it is recommended that **Allegations C and D** be closed as **Within NYPD Guidelines**.

Both PO Viveros and PO Montanoarias told § 87(2)(b) that she could be detained at an NYPD stationhouse for refusing to identify herself to the officers. § 87(2)(g)

§ 87(2)(b) BWC videos capture § 87(2)(b) refusing to provide her ID to PO Viveros and PO Montanoarias. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations E and F** be closed as **Within NYPD Guidelines**.

Allegation (G) Abuse of Authority: Police Officer Rodolfo Viveros interfered with an individual's use of a recording device.

Allegation (H) Discourtesy: Police Officer Rodolfo Viveros acted discourteously toward an individual.

Allegation (I) Abuse of Authority: Police Officer Rodolfo Viveros interfered with individuals' use of recording devices.

§ 87(2)(b) (Board Review 05) stated that about five of her friends approached while she was speaking to the officers. One § 87(2)(b) friends, all of whom she declined to identify, began recording with his cellphone. This individual moved close to PO Viveros, apparently to record video of PO Viveros' shield. When this individual held his phone out to record PO Viveros, his phone was approximately three inches from PO Viveros' face. PO Viveros then smacked this individual's phone from his hand, causing the phone to fall to the ground. § 87(2)(b) told her mother over the phone that PO Viveros had "just assaulted" her friend. Another of § 87(2)(b) friends then also began recording video on his cell phone. § 87(2)(b) and her friends told this second friend to back up while he was recording, and the second friend did so. PO Viveros did not hit the second friend's phone away.

Although § 87(2)(b) did not allege that PO Viveros interfered with her other friends' use of a recording device, BWC video showed PO Viveros briefly interfering with two other individuals' ability to record him.

In PO Viveros' BWC video (Board Review 02), beginning at 2 minutes 50 seconds, two individuals appear to begin recording video of the officers using their cellphones with the flashlights turned on and facing the officers. At 2 minutes 55 seconds, the individual standing farthest to screen right moves their phone toward PO Viveros' face with the flashlight on. At 2 minutes 57 seconds, PO Viveros swipes hard at the individual's hand, knocking the individual's hand away and knocking the individual's phone to the ground. PO Viveros says, "Get that out of my face." At 3 minutes 7 seconds, two other individuals appear to be recording video of PO Viveros with the flashlights on and facing PO Viveros. Both individuals move closer to PO Viveros. At 3 minutes 13 seconds, PO Viveros says to both individuals, "Get that out of my face," while more gently swiping away the hands holding the phones. He does not knock these phones to the ground. At 3 minutes 15 seconds, PO Viveros says, "I just told you: get out of my face," and again gently swipes away the hands of the individuals holding the phones, without knocking either phone to the ground.

PO Viveros (Board Review 06) stated that as he spoke with § 87(2)(b) other individuals began recording him and moved close to his face. The phones had bright lights that blinded PO Viveros, so PO Viveros told the individuals to get out of his face. One individual held their phone less than a foot from PO Viveros' face. PO Viveros swiped at that individual's arm to move the hand and

phone away from his face. This individual's phone fell to the ground. PO Viveros did not intend to knock the individual's phone from their hand. Two more individuals then moved closer to PO Viveros. PO Viveros said to these individuals, "Get that out of my face," and again made a swiping motion at the individuals hands, which were holding the phones. PO Viveros swiped these three individuals' phones away as opposed to verbally instructing them to move their phones away because it was faster to do so. PO Viveros also swiped these three individuals' phones away because the area was not well lit, because one of the individuals wore a face mask so that PO Viveros could not identify them, and because it was tactically unsafe for PO Viveros to have multiple lights from cameras in his face while there were five people standing with himself and PO Montanoarias.

According to the Mission, Vision, and Values of the NYPD, as articulated in the NYPD Patrol Guide (Board Review 13), officers are to render their services with courtesy and civility.

According to NYPD Administrative Guide Procedure 304-21 (Board Review 14), individuals have a right to record police activity, including detentions, searches, arrests, or uses of force. The right to lawfully record police activity extends to individuals in public places, such as streets, sidewalks, and parks, as well as private property in which the individual has a legal right to be present, such as buildings, lobbies, workplaces, or an individual's own property. This right to record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual recording.

BWC video captures PO Viveros § 87(2)(g) when he knocked that individual's phone from their hand. § 87(2)(g)

it is recommended that **Allegation G** be closed as **Within NYPD Guidelines** § 87(2)(g)

PO Viveros' swiping motion, as captured in his BWC video, § 87(2)(g)

PO Viveros gave no warning or instruction before § 87(2)(g) knocking the phone to the ground. Therefore, it is recommended that **Allegation H** be closed as **Substantiated**.

After PO Viveros knocked an individual's phone to the ground, two other individuals began recording video with flashlights on, and also moved their phones closer to PO Viveros. § 87(2)(g)

PO Viveros did not § 87(2)(g) knock the phones to the ground as he did with the first individual, but instead moved them aside § 87(2)(g) and gave verbal instructions to the individuals to move their phones away. Therefore, it is recommended that **Allegation I** be closed as **Within NYPD Guidelines**.

Allegation (J) Force: Police Officer Rodolfo Viveros used physical force against an individual.

§ 87(2)(b) (Board Review 15) stated that while she was on FaceTime with § 87(2)(b) she heard § 87(2)(b) say, "You assaulted him. You just pushed him." At this point, § 87(2)(b) was

walking toward Zimmerman Playground and did not see anything on her phone screen from the Facetime call. § 87(2)(b) then told § 87(2)(b) that PO Viveros had pushed her friend.

§ 87(2)(b) (Board Review 05) clarified that when she told § 87(2)(b) that PO Viveros had “just assaulted” her friend, she was referring to PO Viveros knocking the individual’s phone from their hand, as addressed in the analysis of Allegations G and H. Aside from knocking an individual’s phone from their hand, PO Viveros did not use any force against § 87(2)(b) or her friends during this incident.

PO Viveros’ and PO Montanoarias’ BWC videos (Board Review 02 and 03) show that PO Viveros did not push any individual during this incident. At 2 minutes 57 seconds, PO Viveros knocks an individual’s phone from their hand, and § 87(2)(b) then says that PO Viveros had, “Just assaulted [him].”

§ 87(2)(g) it is recommended that **Allegation J** be closed as **Unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 20).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 21).
- PO Viveros has been a member of service for one year and this is the first CCRB complaint to which he has been a subject.
- PO Montanoarias has been a member of service for one year and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of October 16, 2024, the New York City Office of the Comptroller had no record of any Notice of Claim associated with this incident (Board Review 17).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 12

Investigator:	<u>Mimi Western</u>	<u>Inv. Mimi Western</u>	<u>October 16, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Samuel Ross</u>	<u>IM Samuel Ross</u>	<u>10/21/2024</u>
	Signature	Print Title & Name	Date

Reviewer:

Signature

Print Title & Name

Date